

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #10	CCRB Case #: 202007965	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 12/06/2020 2:36 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/6/2022	Precinct: 71		
Date/Time CV Reported Sun, 12/06/2020 8:33 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 12/06/2020 8:33 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			071 PCT
2. POM Anthony Finno	03871	948968	071 PCT
3. LT Akm Alam	00000	941329	071 PCT
4. SGT Christian Carlin	00303	941501	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Stephanie Malvica	23563	967179	071 PCT
2. POM Sandy Peralta	12833	943664	071 PCT
3. POM Shamar Powell	19249	944906	071 PCT
4. POM Yevhen Bizhko	01350	964394	071 PCT
5. POM Omar Delarosa	06614	964474	071 PCT
6. POM Jonathan Nika	04579	944851	071 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . Officers	Abuse: Officers refused to provide their shield numbers to § 87(2)(b)	A . Officer(s) Unidentified
B . LT Akm Alam	Abuse: Lieutenant Akm Alam threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Anthony Finno	Discourtesy: Police Officer Anthony Finno was discourteous to § 87(2)(b)	C . Substantiated
D . POM Anthony Finno	Off. Language: Police Officer Anthony Finno made offensive remarks to § 87(2)(b)	D . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On December 6, 2020, § 87(2)(b) filed the following complaint via the CCRB's online complaint form. On August 4, 2021, the case was reassigned from Investigator Michael Zajakowski Uhl to Investigator Griffin Sherbert.

On December 6, 2020, at approximately 2:36 p.m., in the vicinity of § 87(2)(b) in Brooklyn, § 87(2)(b) her brother, § 87(2)(b) and § 87(2)(b) unidentified girlfriend became involved in a dispute, wherein § 87(2)(b) allegedly struck § 87(2)(b) with his cane. § 87(2)(b) called her friend, § 87(2)(b) and asked him to call 911 on her behalf. § 87(2)(b) exited the apartment building, and several minutes later, Lieutenant Akm Alam, Police Officer Sandy Peralta, Police Officer Stephanie Malvica, Police Officer Anthony Finno, Police Officer Shamar Powell, Police Officer Yevhen Bizhko, Police Officer Omar Delarosa, and Police Officer Jonathan Nika, all of the 71st Precinct responded. § 87(2)(b) led the officers upstairs to her apartment, wherein the officers spoke to § 87(2)(b) and § 87(2)(b) repeatedly asked the officers to arrest § 87(2)(b) and the officers allegedly refused to allow her to file a complaint report. Afterward, § 87(2)(b) requested all of the officers' shield numbers, however, the several officers present allegedly did not respond (**Allegation A: Abuse of Authority-Refusal to Provide Shield Number, Officer(s) unidentified**) and Lieutenant Alam threatened to arrest § 87(2)(b) (**Allegation B: Abuse of Authority-Threat of Arrest, exonerated**). Shortly thereafter, all of the officers left the scene. During this incident, PO Finno wore a Punisher patch (**Allegation C: Discourtesy-Other, substantiated; Allegation D: Offensive Language-Other, substantiated**) § 87(2)(g)

There were no arrests or summonses.

The investigation obtained (8) Body-Worn Camera ("BWC") videos from the responding officers (**BR01-BR08**), which captured the majority of this incident, and were dispositive as to the allegations above. No other video evidence exists for this case.

Findings and Recommendations

Allegation A—Abuse of Authority: Officers refused to provide their shield numbers to § 87(2)(b)

§ 87(2)(b) consistently stated (**BR09 and BR10**) that she woke up from a nap in her apartment and went to the living room, wherein § 87(2)(b) and his girlfriend accused § 87(2)(b) of stealing money from the girlfriend's wallet. § 87(2)(b) denied that she stole any money and went back to lay down in her bedroom. A minute or two later, § 87(2)(b) came into § 87(2)(b) room and hit her twice on her right leg with his cane.

§ 87(2)(b) called her friend, § 87(2)(b) asked him to call the police on her behalf, and then exited the apartment building to wait for the police outside. After 15 minutes, approximately eight officers responded. § 87(2)(b) told them her brother had hit her with his cane and showed them the marks on her leg. § 87(2)(b) led the officers upstairs to her apartment.

Once upstairs, § 87(2)(b) unlocked her apartment door, pointed out § 87(2)(b) and his girlfriend to the officers, and said, "that's him, he's on parole and he touched me," which § 87(2)(b) and his girlfriend disputed. Three or four officers went inside to talk to § 87(2)(b) while the remaining four officers stayed out in the hallway with § 87(2)(b)

After a couple of minutes, an officer who had gone into the apartment to speak to § 87(2)(b) asked § 87(2)(b) to come into the apartment and gave her paperwork to start filing a complaint. However, when § 87(2)(b) could not find the cane § 87(2)(b) hit her with, the officer told her that she "can't file a report then," and made § 87(2)(b) give him the complaint report back to him.

§ 87(2)(b) called § 87(2)(b) and told him the officers would not let her file a report, and

§ 87(2)(b) told her to request the officers shield numbers. § 87(2)(b) exited the apartment, went back into the hallway, and stated, "Can I have all ya'll badge numbers?" However, § 87(2)(b) stated that not only did the several officers present not respond, but they all turned away from her so that she could not see their shield or nameplates. Shortly thereafter, all the officers left the scene.

§ 87(2)(b) was called and provided a brief statement (BR11) about what he heard over the phone during the incident that. While § 87(2)(b) statement was generally consistent with § 87(2)(b) statement (BR10), he was unable to provide a detailed account as he did not witness the incident. § 87(2)(b) stated that § 87(2)(b) asked the officers to file a report against § 87(2)(b) asked for their names and shield numbers, and that the officers refused to file a report or provide their names or shield numbers.

Although § 87(2)(b) was present during the incident, the investigation was unable to contact him, and ultimately, § 87(2)(b) did not provide a statement to the CCRB.

Domestic Incident Report #§ 87(2)(b) (BR12), prepared by PO Delarosa, on § 87(2)(b) reported a domestic incident at § 87(2)(b) provided address, that involved a female victim and male suspect, who lived together, but refused to provide their names or other information. PO Delarosa further reported that the female victim was upset, although not injured or in pain, was uncooperative, and refused a copy of the DIR. Additionally, PO Delarosa reported that the male suspect was uncooperative, but was not arrested as no offense was committed.

The investigation obtained (8) BWC videos from the responding officers (BR01-BR08), which captured the majority of this incident. Lieutenant Alam's (BR01) and PO Peralta's (BR02) BWC footage captured the most comprehensive footage as pertains to the above allegations, as described below.

At 10:04 of Lieutenant Alam's BWC (BR04), § 87(2)(b) states generally, to no particular officer, that she "want[s] everybody's badge number. Every time I fucking call he doesn't get arrested!" Immediately after making the general request, § 87(2)(b) walks away from Lieutenant Alam and the other officers and into an interior hallway. At 11:43, § 87(2)(b) states again, in general, to no particular officer, "Can I have all y'all badge numbers please?" Notably, in the midst of making the second generalized request, § 87(2)(b) begins speaking on the phone with a male individual, while simultaneously pushing past Lieutenant Alam and PO Peralta to exit the apartment. Lieutenant Alam asks § 87(2)(b) if she is leaving. PO Peralta then asks § 87(2)(b) what she wants, given that the officers responded to her 911 call, and now § 87(2)(b) appears to be leaving. In response to PO Peralta, § 87(2)(b) says she is leaving because the officers are not "doing anything." PO Peralta replies that they are trying to "get to the bottom of the story." § 87(2)(b) tells PO Peralta that there "is no bottom of it...He hit me, sir."

At 12:13 of Lieutenant Alam's BWC (BR04), in response to PO Peralta telling § 87(2)(b) she is not being compliant, § 87(2)(b) remarks again, in general and not addressing any particular officer, "I want y'all badge numbers," while simultaneously walking away from the officers and out of Lieutenant Alam's BWC frame. At 13:40, Lieutenant Alam walks to the apartment door, and asks what § 87(2)(b) is saying, and an officer replies, § 87(2)(b) is taking [PO] Peralta's information." As Lieutenant Alam steps around the corner, PO Peralta and § 87(2)(b) are heard speaking over each other, and while most of the crosstalk is indiscernible, PO Peralta is heard stating, "Peralta," a few times.

PO Peralta's BWC (BR05), at 06:06, shows § 87(2)(b) directly request PO Peralta to provide his name, while simultaneously on the phone. PO Peralta replies, "Peralta," provides his badge number as "12833," and repeats it several times. § 87(2)(b) does not write down or otherwise record PO Peralta's provided information but asks if her brother is going to get arrested. PO Peralta tells her that she has to fill out a report and provide a statement if she wants that outcome, but § 87(2)(b) says she cannot provide a statement for the report.

Lieutenant Alam's BWC (BR04), at 18:50, shows that, after being informed that § 87(2)(b) is not filling out the report, Lieutenant Alam asks § 87(2)(b) what the current status is regarding her dispute with her brother, as she walks out of the apartment. § 87(2)(b) replies, "Go

ahead. § 87(2)(b) talked to me. He apologized." At 19:08, after Lieutenant Alam confirms with § 87(2)(b) that she no longer wants to fill out a report regarding the incident with her brother and does not need anything further from the officers, Lieutenant Alam turns off his BWC.

Additionally, while several officers entered the apartment after § 87(2)(b) opened the door for them and pointed out § 87(2)(b) as her assailant; § 87(2)(b) for his part, does not at any point during the incident remark, comment, dispute, or otherwise refuse the officers' entry or continued presence in his apartment. As captured by PO Delarosa's BWC footage (BR04), at 04:05, after § 87(2)(b) unlocks and opens the apartment door, PO Delarosa asks § 87(2)(b) how things are going while walking into the apartment. § 87(2)(b) begins relaying his side of the story, wherein he repeatedly notes that § 87(2)(b) does not live in the apartment, she made a recent "false report" against him and just wants her to leave. Moreover, in response to § 87(2)(b) frustration at the situation, at 08:25 of PO Delarosa's BWC (BR04), Lieutenant Alam explains that since § 87(2)(b) called 911 and accused him of assault, they were required to conduct an investigation. § 87(2)(b) replies, "No problem." For these reasons, no entry allegations were pleaded.

When a uniformed member of the service interacts with a member of the public and/or concludes the above-described law enforcement activities they must courteously and clearly state their rank, name, shield number and command, or otherwise provide them, to anyone who requests them to do so. *Patrol Guide*, Procedure 203-09 (BR13).

While the BWC footage (BR04-BR05) confirmed that § 87(2)(b) made three requests for all of the responding officers shield numbers, the BWC footage also shows that none of § 87(2)(b) requests were made to any specific officer present, but generally to the group of officers. Furthermore, during each instance where § 87(2)(b) generally requested all the officers shield numbers, she immediately walks away from the officers or is simultaneously speaking on the phone, rather than attempting to obtain any officer's identifying information. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Officer(s) Unidentified**.

Allegation B—Abuse of Authority: Lieutenant Akm Alam threatened to arrest § 87(2)(b)

Lieutenant Alam's BWC (BR04), at 01:03, shows him exiting a police vehicle, and walking towards § 87(2)(b) in Brooklyn, where § 87(2)(b) is standing and speaking with other officers. At 01:46, § 87(2)(b) opens the building door and leads officers inside. At 04:20, once upstairs, Lieutenant Alam asks where her brother hit her with the cane, and § 87(2)(b) rolls up the bottom of her right pant leg and shows Lieutenant Alam and another officer her right shin and ankle area. Although § 87(2)(b) raises her leg closer to Lieutenant Alam's BWC, and asks if he sees the alleged mark, Lieutenant Alam does not verbally respond, and the BWC does not capture any mark, redness, swelling, or other identifiable injury present on § 87(2)(b) shin and ankle area.

At 13:15 of his BWC (BR04) during the course of investigating § 87(2)(b) complaint against her brother, Lieutenant Alam tells § 87(2)(b) that "if you hit her, you're gonna be arrested."

A person is guilty of assault in the third degree when with intent to cause physical injury to another person, he causes such injury to such person or to a third person. Assault in the third degree is a class A misdemeanor. *NY CLS Penal § 120.00 (BR14)*.

In *People v. Crespo*, the court held that "an eyewitness victim of a crime can provide probable cause for the arrest of his assailant despite the fact that his reliability has not been previously established or his information corroborated (*People v Hyter*, 61 AD2d 990). The victim's reliability is assured because he can be prosecuted if his report is a fabrication (see *Penal Law*, § 240.50; *People v Flammagan*, 56 AD2d 289)(BR15).

It was undisputed that § 87(2)(b) alleged § 87(2)(b) struck her with his cane, § 87(2)(b). It is therefore recommended that **Allegation B** be exonerated.

Allegation C—Discourtesy: Police Officer Anthony Finno was discourteous to § 87(2)(b)
Allegation D—Offensive Language: Police Officer Anthony Finno made offensive remarks to § 87(2)(b)

Lieutenant Alam's BWC footage (BR04), at 14:00, shows PO Finno who is standing in the hallway outside of § 87(2)(b) apartment and appears to have several patches affixed to his ballistic vest, one of which appears to be the "Punisher" insignia, blended with the American flag.

During his interview, PO Finno (BR16) acknowledged that, on the incident date, he had been wearing several patches on his ballistic vest, but no longer wore them because of NYPD policy not to wear patches on your vest.

Later in his interview, PO Finno was shown a screenshot of Lieutenant Alam's BWC at 14:00 (BR17), and PO Finno identified himself. PO Finno described the patches as (1) "an American flag, (2) an American flag, in the shape of a Punisher skull, (3) a Batman patch, (4) an 'In Flames' patch, which is a band, and (5) a Midnight Squad patch, that has a couple of skulls on it," and (6) an "O+" patch," identifying his blood-type. PO Finno confirmed that he was wearing the enumerated patches during roll call on the incident date, that his supervisor, Sergeant Christian Carlin of the 71st Precinct, inspected his uniform at roll call, and that Sgt. Carlin did not speak to him about the several patches affixed to his uniform.

PO Finno stated that the Punisher insignia patch (BR18), circled in red, did not have any significance, special meaning, or any apparent negative connotations to him. However, PO Finno also acknowledged that he "understood that other people might not enjoy," an officer wearing a Punisher patch, based on "the idea that the police are here to punish people, but that's not why I wore it. I'm not here to punish anybody. It was just a patch." When asked why he wore the particular Punisher patch seen in the screenshot (BR18), PO Finno stated, "Because it had an American flag on it."

Although PO Finno did not recall where, or from whom, he obtained the patches, denied he obtained them through any person or group affiliated with the NYPD, and denied that any supervisor spoke to him about the patches. PO Finno further stated that he removed the several patches in question "when it became apparent [the patches] were no longer allowed," which PO Finno thought was sometime during 2021.

The Punisher skull symbol was originally loosely based on the German "Totenkopf" a.k.a "Death's Head" symbol. The Totenkopf depicts a skull and crossbones and was adopted by Adolf Hitler's Nazi-era Schutzstaffel (SS) as their symbol during World War II (BR19). The use of the Punisher symbol outside of the Marvel Comics universe was traced back to the rise of post-9/11 militarization. Famed US Navy SEAL sniper, Chris Kyle, stated in his 2012 autobiography titled, "American Sniper," that his unit was nicknamed, "The Punishers" and painted the skull on their equipment, Hummers, body armor, helmets and all their guns (BR20). Between 2017 and 2021, the Punisher logo has been visible on articles of clothing and weapons held at white supremacy rallies and most recently, the storming of the US Capitol on January 6, 2021. Punisher creator, Gerry Conway stated in an interview with SyfyWire (BR21) that police and military use of the Punisher logo is "disturbing." He also stated, "The vigilante anti-hero is fundamentally a critique of the justice system, an example of social failure, so when cops put Punisher skulls on their cars or members of the military wear Punisher skull patches, they're basically siding with an enemy of the system. They are embracing an outlaw mentality...He (the Punisher) is a criminal."

The mission of the New York City Police Department is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, reduce fear, and maintain order. The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect [...] Maintain a higher standard of integrity than is generally

expected of others because so much is expected of us, [and] value human life, respect the dignity of each individual and render our services with courtesy and civility. Patrol Guide, Procedure 200-02 (BR22)

Officers are prohibited from knowingly associating with any person or organization advocating hatred, oppression, or prejudice based on race, religion, gender, gender identity/expression, sexual orientation, or disability; disseminating defamatory material; reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities; preventing or interfering with performance of police duty. Patrol Guide, Procedure 203-10 (BR23).

Officers are directed to not modify their prescribed uniforms in any manner except as specifically authorized by higher authority. Patrol Guide, Procedure 204-01 (BR24).

§ 87(2)(g)

It is therefore recommended that **Allegations C** and **D** be substantiated.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- This is the first CCRB complaint in which § 87(2)(b) [REDACTED] is a party (**BR28**).
- PO Finno, an 11-year-member-of-service, has not had any prior CCRB complaints filed against him (see Officer History). This is the first CCRB complaint in which PO Finno is a party.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of January 18, 2022, there was no Notice of Claim pertaining to this incident (**BR26**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: 10

Investigator: Griffin Sherbert Inv. Griffin Sherbert 04/22/2022
Signature Print Title & Name Date

Squad Leader: Eric Rigie IM Eric Rigie 4/25/2022

Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date